

Huawei ICT Academy Program

ASC Agreement

Between

Huawei Technologies (Thailand) Co.,Ltd.

and

Khon Kaen University

This Agreement is made between:

Huawei Technologies (Thailand) Co.,Ltd., a company incorporated under the laws of Thailand and having its registered office at **No.9 , G Tower Grand Rama 9 , Room No. GN01-04, Rama 9 Road, 34th-39th Floor, Huaykwang Sub-district, Huaykwang District, Bangkok Metropolis, 10310 Thailand** (hereinafter referred to as the "Huawei" which term where the context so admits, shall include its successors and assigns)

And

Khon Kaen University, an organization established under the laws of Thailand and having its registered office at **123 Moo 16 Mittraphap Rd., Nai-Muang, Muang District, Khon Kaen 40002 Thailand**. (hereinafter referred to as "Partner", which expression shall include its successors and permitted assigns).

Both parties had all agreed in a spirit of mutual co-operation with the intention of building a sustainable and robust alliance consistent with the strategic goals and values.

1. DEFINITIONS

- 1.1 "Academy" means an education related organization that teaches ICT technology skills and career building to students using the Huawei ICT Academy authorized courses and tools, to improve career and economic opportunities.
- 1.2 "Academy Support Center (ASC)" means an organization which is certified and authorized by Huawei, in order to support Huawei ICT Academies on boarding process and daily operations by providing Huawei authorized courses and tools, as well as other Huawei resources.
- 1.3 "Territory" means the geographical area that has been authorized by Huawei for the fulfilment of the ASC responsibilities under the Agreement.
- 1.4 "Confidential Information" means all financial, business and technical or other data and all other information (whether written, oral or in electronic form or on magnetic or other media) concerning the business and affairs of a Party that the other Party obtains, receives or has access to as a result of discussions leading up to the Agreement and throughout the Term.
- 1.5 "Huawei ICT Academy Program" means a program of Huawei to enable global education organizations and their students to learn ICT knowledge and skills through Huawei authorized courses and other related educational services.
- 1.6 "HCAI" means Huawei Certified Academy Instructor.
- 1.7 "Intellectual Property Rights" or "IPR" shall mean patents, rights to inventions, copyright and related rights, Trademarks, trade names and domain names, rights in get-up, rights in goodwill or to sue for passing off, rights in designs, rights in computer software, database rights, rights in Confidential Information (including know-how and trade secrets) and any other intellectual property rights, in each case whether registered or unregistered and including all applications (and rights to apply) for, and renewals or extensions of, such rights and all similar or equivalent rights or forms of protection which subsist or will subsist, now or in the future, in any part of the world.
- 1.8 "TTT" means Train The Trainer.

2. PURPOSE

- 2.1 The Academy Support Center will play a significant role in the success of Huawei ICT Academy Program. The operational support, provided by ASC, is essential throughout the lifecycle of the Huawei ICT Academy. In order to structure this, Parties agree with the responsibilities as defined below.
- 2.2 Huawei will authorize Partner on a non-exclusive, revocable basis as an 'ASC' for promotion and providing support to the Huawei ICT Academy within the Territory, and Partner desires to accept such authorization, pursuant to the terms and conditions set forth in this Agreement, and will work together with Huawei to develop and serve Huawei ICT academies in the defined territory.

3. RESPONSIBILITIES AND OBLIGATIONS

3.1 Huawei will:

- a) Provide the authorized course materials to Partner. Huawei may regularly optimizes course materials based on industry trends.
- b) Enable and support Partner to fully meet ASC capability requirements, including but not limited to technical training, lab training, TTT training, workshops and incentive plans.
- c) Support Partner to provide TTT training for the Academies.
- d) Support Partner to provide instructor professional development, technical guidance and other necessary support to Academies.
- e) Provide marketing support to Partner, such as marketing collaterals, latest information on technology and industry trends, white papers, social media campaigns, virtual and on-site marketing activates, souvenirs, and prizes, etc.
- f) Release ASC Incentive Program to Partner based on the actual situations of regions and/or countries, or discuss the particular incentive rules with Partner as an attachment to this Agreement.

3.2 Partner will:

- a) Promote and recruit new Huawei ICT Academies. Organize virtual workshops, on-site workshops, and marketing activities to explore potential Huawei ICT Academies.
- b) Assist the new academies with on boarding process: registration, orientation and be prepared to attend instructor training.
- c) Have at least two HCAI certified Instructors and deliver the TTT to Huawei ICT academies.
- d) Assist the new academies in the purchase of laboratory equipment and the construction of classrooms, follow the new academies requirement.
- e) Assist and guide the academies in integrating the Huawei ICT Academy courses such as Datacom, WLAN, Cloud Computing, AI, IoT, Big Data etc. into the formal academia courses.
- f) Assist in facilitating, continuously supporting and monitoring the progress of Huawei courses provided to students by supported Academies.

- g) Provide support for Academies to apply Huawei Certification Exam Vouchers.
- h) Serves as the primary focal point for the Academies' daily support. Assist and guide the academies to improve quality. Provide marketing support to academies to attract new students. Raise awareness and provide training to increase use of resources and tools.

4. TERM

- 4.1 This Agreement shall be valid from the Effective Date until Dec 31st, 2023 (the "Initial Term"), unless terminated earlier in accordance with the provisions of this Agreement or extended by written agreement at least thirty (30) Days prior to the end of Initial Term. Where such extension is agreed, all references to "Term" herein shall be deemed to cover the period of such extension. (internal note: please note the Term shall not exceed three years.)

5. TERMINATION

- 5.1 This Agreement may be terminated at any time by the mutual written consent.
- 5.2 Either Party may terminate this Agreement immediately by giving written notice to the other Party, if the other Party:
 - a) Is in material breach of any term of this Agreement.
 - b) Explicitly refuses to remedy or the breach continues un-remedied;
 - c) Becomes bankrupt or is the subject of proceedings for liquidation or dissolution on business or becomes unable to pay its debts as they come due;
- 5.3 During the Term, Huawei may terminate this Agreement by written notice to the Partner if:
 - a) The ownership or control of the Partner is acquired by a person, firm or company that compete with Huawei, directly or through its affiliates, or there is any other material change in the ownership of the Partner that Huawei considers to be detrimental to its interests; or
 - b) The Partner assigns part or whole of this Agreement to a third party without prior written consent from Huawei.
 - c) The Partner's support and service to Academies cannot satisfy Huawei or student's reasonable requirements.
- 5.4 The termination of this Agreement pursuant to Article 5.2 5.2 and 5.2 5.3 shall become effective at the date when the notice on the termination is duly given to the other Party;

6. CONFIDENTIALITY

- 6.1 Either Party (the "Receiving Party") shall keep confidential the Confidential Information disclosed by the other Party (the "Disclosing Party") during the Term of this Agreement and for a five (5) years period following the termination of this Agreement; except in respect of Software and trade secrets under Applicable Laws, where such obligations shall be perpetual.

- 6.2 The Receiving Party shall handle Confidential Information with the same degree of care it applies to its own confidential information, and shall use the Confidential Information of the Disclosing Party only to the extent necessary to fulfill its obligations or exercise its rights under this Agreement.
- 6.3 The Receiving Party shall restrict disclosure of, and access to, Confidential Information to its affiliates, employees, agents, advisors, or subcontractors who have a need to know in order for the Receiving Party to perform its obligations or exercise its rights under this Agreement, and who have assumed obligations of confidentiality no less restrictive than those contained herein. The Receiving Party shall be responsible for any breach of this Article 6 (CONFIDENTIALITY) by its affiliates, employees, agents, advisors or subcontractors to whom it has disclosed Confidential Information.
- 6.4 The provisions in Article 6 (CONFIDENTIALITY) shall not apply to any information which the Receiving Party can prove:
- a) Is or becomes public knowledge other than by breach of this Article 6 (CONFIDENTIALITY);
 - b) Is in the possession of the Receiving Party without restriction in relation to disclosure before the date of receipt from the Disclosing Party;
 - c) Is received from a third party who lawfully acquired it and who is under no obligation restricting its disclosure; or
 - d) Is independently developed without access to the Confidential Information disclosed by the Disclosing Party.
- 6.5 The Receiving Party will be entitled to disclose Confidential Information if such disclosure is required by a court, administrative body, or regulatory body (including a stock exchange) of competent jurisdiction, whether as a result of any application made by the Receiving Party or an investigation initiated by the regulatory body, or otherwise, provided that the Receiving Party shall:
- a) Give prompt written notice of any such requirement for disclosure to the Disclosing Party so that the Disclosing Party may seek a protective order or other appropriate remedy;
 - b) Take such steps as are reasonably necessary and available to maintain the confidentiality of the Confidential Information by such court, administrative or regulatory body; and
 - c) In any event, make such disclosure only to the extent so required.

7. INTELLECTUAL PROPERTY RIGHTS

- 7.1 The Partner acknowledges and accepts that any and all of the Intellectual Property Rights pertaining to the training of Huawei are and shall remain the property of Huawei or its licensors. The Partner will not during the Term or at any time after the expiration or termination of this Agreement in any way question or dispute the ownership of any such Intellectual Property Rights of Huawei. The Partner also acknowledges that Intellectual Property Rights belonging to Huawei or its licensors can only be used in accordance with this Agreement.
- 7.2 Except as otherwise agreed in this Agreement, during the Term Huawei grants the Partner a non-exclusive, revocable, non-transferable and non-sub-licensable right to use, reproduce and copy Huawei Material only to the extent explicitly required for

the purpose of delivering training within the Territory in accordance with Huawei's written consent.

- 7.3 The Partner acknowledges and agrees that Trademarks shall be used in accordance with the HUAWEI Trademark Policy available at the following URL address: <http://e.huawei.com/en/partner/partner-program/legal/sub-legal/trademark-policy>, which is subject to Huawei unilateral change from time to time and is subject to the prior written consent of Huawei. Huawei shall be entitled to inspect training at the premises of the Partner to confirm full compliance with the terms set forth in this Agreement. Upon receipt of written notice from Huawei, the Partner shall immediately cease to use Trademarks provided that Huawei notifies the Partner that there is trademark infringement risk and requires the Partner to cease to use such Trademarks immediately. The Partner shall not use third party's trademark to promote the training without such trademark owner's written permission. In no event shall Huawei be responsible for the Partner's use of third party's trademark to promote the training, and the Partner shall hold Huawei harmless from infringement caused by the use of third party's trademark by the Partner.
- 7.4 In no event shall the Partner reverse engineer, decompile or disassemble Products and/or Software.
- 7.5 The Partner shall not take or assist to take or cause to be taken any action to challenge, contest, impair, invalidate or tend to challenge, contest, impair or invalidate the patents, copyright or Trademarks of Huawei and will not do anything that might prejudice the reputation or promotion of any training. The Partner shall not directly or indirectly apply for registration of any trademarks, trade names, domain names or other signs which contain Huawei's Trademarks, domain names or any part thereof or which may cause confusion with Huawei's Trademarks or domain names. The aforementioned obligations shall survive upon termination and expiry of this Agreement.
- 7.6 The Partner shall take reasonable measures to safeguard Huawei IPRs from any unauthorized use or disclosure provided that in no event will such efforts be less than the degree of care that the Partner exercises in protecting its own IPR.
- 7.7 Software
- a) Huawei has the exclusive right, title and interest in Huawei Software;
 - b) Any Software either incorporated in the Products or delivered to the Partner together with the Products shall be governed by the terms and conditions of the Software license included in the relevant Software program ("Software License"). Huawei grants the Partner a non-exclusive, irrevocable non-transferable (except as below) and non-sub-licensable right to use the Software within the Territory in solely accordance with the terms of the Software License and this Agreement. The Partner shall only supply, or provide service for the Products subject to such Software License;
 - c) Except as otherwise provided in this Agreement or approved in writing by Huawei, the Partner shall not, itself or through any other third party, modify, vary, enhance, copy, reproduce, adapt, disassemble, decompile, translate, sub-lease, license, or otherwise deal with Software or any part of it. The Partner shall not make any copy of the Software except for the sole purpose of back-up and archival;
 - d) The Partner agrees that the Software provided to it by Huawei under this Agreement or any renewals, extensions, expansions, modifications, chargeable upgrades, enhancements or changes thereof, shall, as between the Parties hereto, be treated as Huawei IPR.

- 7.8 Notwithstanding any other provision in this Agreement and without prejudice to the generality of the other provisions in this Agreement, Huawei shall have the right to seek other remedies available at law and in equity including statutory damages, compensatory damages, loss of goodwill, loss of profits and revenue and loss of income and any other damages resulting from the Partner's breach of the provisions of this Article 7 (INTELLECTUAL PROPERTY RIGHTS).
- 7.9 The Partner can extract contents from Huawei's Training Kits to enrich its curriculum teaching materials, provided that, such extraction should only be made with Huawei's prior written approval, and clearly marked as extracted from Huawei Training Kits. The copyright of such extraction materials should still remain with Huawei.
- 7.10 The Partner shall not disclose, sell, lease, transfer, share or permit the use of Huawei's training documents (including paper-based documents and e-documents) to any third party in any way, such as reproducing, distributing or publishing the Training Kits for any use other than delivering authorized training to Students.
- 7.11 If the Partner infringes any of Huawei's intellectual property rights Huawei shall reserve the right to unilaterally disqualify the Partner, and reserve the right to take further legal actions. This Agreement will automatically terminate upon the date of Huawei's notice for the disqualification, and Huawei does not bear any liability for unilaterally terminating this Agreement.
- 7.12 The Partner shall notify Huawei promptly of any breach or suspected breach of this Article 7 (INTELLECTUAL PROPERTY RIGHTS) and further agrees that it will, at Huawei's request, assist Huawei to protect Huawei's intellectual property rights including pursuing an action against any third parties.

8. LIMITATION OF LIABILITY

- 8.1 **The total liability of Huawei and Partner** under this Agreement (including its subcontractors) on all claims, whether based on contract, tort, infringement of third party intellectual property rights, property damage or otherwise, resulting from or in connection with the performance of this Agreement, including any liquidated damages, shall not exceed one thousand (1,000) dollars. This limitation is cumulative and not per-incident.
- 8.2 Except as otherwise provided by law, in no event shall Huawei be liable to the Partner for any incidental, special, indirect, punitive or consequential damages, lost profits, lost revenue, goodwill or anticipated savings, or lost or damaged data, whether arising out of or in connection with this Agreement, tort (including negligence) or otherwise, even if Huawei has been advised of their possibility thereof.

9. DATA PROTECTION AND PRIVACY

- 9.1 In the performance of this Agreement each Party will collect and process personal information. The Parties will comply with the privacy laws that apply in each jurisdiction in which information is collected and used, and will ensure that the requirements of their respective privacy policies are followed with a view to protecting all personal information collected. Both Parties agree to use commercially reasonable technical and administrative measures to protect the security of all the personal data that it collects and processes.

- 9.2 Where the Partner provides personal information of its staff, students and/or other related personnel to Huawei (including but not limited to the name, phone number and email address) for the purpose of execution or performance of this Agreement, including, but not limited to, accessing, processing, storing and/or transferring these data, the Partner shall be responsible for effecting or securing at the Partner's own cost, all necessary approvals, permits, consents, licenses and registrations required by all applicable laws. The Partner warrants that the provision and transfer of such personal information to Huawei will comply with all applicable data protection and privacy laws. The Partner agrees to authorize Huawei to process the same for the performance of this Agreement.
- 9.3 Any personal information processed or accessed under this Agreement by the Partner in the performance of its obligations hereunder shall be limited to that is necessary to perform such obligations or to fulfill any legal requirements according to this Agreement. The Partner shall not use any personal information for its own marketing or any other purposes. Especially, if any third party makes a claim against Huawei and /or its' affiliates due to the breach of any data protection laws, contract, tort and/or any other behaviors by the Partner and/or its staff, the Partner, at its sole cost and expense, will take all measures to defend Huawei and /or its' affiliates against the claim and indemnify and hold harmless Huawei from the damages, liabilities, costs and expenses, including but not limited to reasonable attorney fees and litigation costs, suffered by Huawei and /or its' affiliates.
- 9.4 Either Party shall explicitly authorizes the other Party and its affiliates, employees, agents, advisors, or subcontractors who have a need to know to store, use and transfer any Business Contact Information wherever they do business, in connection with any product and/or service of Huawei or in furtherance of the business relationship of both Parties, for the purpose of fulfilling this Agreement in compliance with the Applicable Laws especially including without limitation, the data protection laws and regulations. It further warrants to the other Party that it will obtain any necessary consent in advance so that the other Party can store, use and transfer the Business Contact Information for the intended purpose in compliance with all applicable laws if the Business Contact Information includes any personal data. For the purpose of this Article, the Business Contact Information including without limitation to, the business contact information of both Parties, users, and/or any third parties who are interested in the operation of the Partner and of Huawei.
- 9.5 Either Party shall take all appropriate technological, physical and organizational security measures required to protect any Business Contact Information provided by either Party to the other Party for the above-mentioned purpose. It shall use such Business Contact Information as strictly necessary for the performance of its obligations under this Agreement or as otherwise directed in writing by the other Party.

10. EXPORT CONTROL

- 10.1 The Partner shall comply with all applicable export control laws and regulations as well as United Nations Security Council resolutions and international treaties (for the purposes of this Article 10, collectively "Export Control Laws") to which all Training Kits and/or training services supplied by Huawei under this Agreement are subject. The Partner shall take all necessary measures to ensure that the Training Kits and/or training services shall not, directly or indirectly, be resold or transferred to the prohibited end users or for the prohibited end use by any applicable export

control laws and regulations, unless properly authorized by the appropriate government authorities. Compliance with such requirements shall be subject to periodic audits by Huawei.

11. COMPLIANCE WITH LAWS

11.1 In connection with the carrying out its obligations and responsibilities under this Agreement, the Partner represents and warrants the following:

- a) The Partner shall comply with all country, federal, state and local laws, ordinances, codes, regulations, rules, policies, licensing requirements, regulations and procedures, including, without limitation, such laws and regulations related to recycling or take-back programs for packaging, the use of products under telecommunications laws/regulations, protecting personal data and privacy, safeguarding cyber security, protecting the trade secrets and IPRs, and all applicable anti-corruption laws (collectively, the "Applicable Laws");
- b) The Partner shall not take any action or permit or authorize any action which may render Huawei in violation of Applicable Laws;
- c) The Partner, (which for purposes of this Article shall include all of the Partner's employees, agents, representatives, affiliates and any person who performs services on behalf of the Partner) agrees that it will not, in connection with this Agreement, (or in respect of any other agreement or understanding between the Partner and Huawei), bribe, or attempt to bribe (which shall include without limitation, any offer of any form of payment, gift or other form of inducement, reward or advantage, charitable donations, facilitation payments, and/or political contributions (whether of money or anything of value)) Huawei, any of Huawei's agents, representatives, affiliates or persons employed by or acting on behalf of Huawei, any customers or potential customers of Huawei, any public or government officials or employees, public international organizations, political parties, or private individuals or other entities ("Relevant Party");
- d) In no event shall Huawei be obligated under this Agreement to take any action or omit to take any action that Huawei believes, in good faith, would cause it to be in violation of any laws of the Territory identified in this Agreement or the Applicable Laws.
- e) The Partner has not, prior to the date of this Agreement, bribed or attempted to bribe any Relevant Party in order to secure and/or retain any business either in connection with this Agreement or otherwise.

11.2 If the Partner discovers that it has or may have violated any of the provisions in this Article 11 (COMPLIANCE WITH LAWS), the Partner shall immediately notify Huawei in writing and cooperate with any investigations by Huawei into such matters.

11.3 Notwithstanding any other provision in this Agreement, Huawei may terminate this Agreement immediately upon written notice if the Partner breaches any of the representations and warranties set forth in this Article 11. the Partner will indemnify and hold harmless Huawei and its directors, officers, employees, agents, affiliates and subsidiaries against any and all liabilities, losses and expenses, including any fines imposed by any relevant government or regulatory authority and any legal fees, costs and expenses, which Huawei and its directors, officers, employees, agents and affiliates and subsidiaries may incur as a result of the Partner's breach of this Article 11 (COMPLIANCE WITH LAWS).

12. GOVERNING LAW AND DISPUTES RESOLUTION

- 12.1 This Agreement shall be governed by and construed in accordance the substantive law of the country where Huawei is registered without referring to its conflict rules.
- 12.2 The Parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Agreement or its interpretation.
- 12.3 All disputes, controversies or claims arising out of or in connection with or in relation to this Agreement of its negotiation, performance, breach, existence or validity, whether contractual or tortious, shall be submitted to the competent court of the country where Huawei is registered.

13. NO ASSIGNMENT

- 13.1 Neither Party may assign it rights, title, benefits interests, obligations, and liabilities in this Agreement to any third party without the prior approval of the other Party.

EXECUTED THIS _____ DAY OF _____ 202X__

Signed for and on behalf of Huawei Technologies (Thailand) Co., Ltd. by its duly authorised officer:

Mr/Ms

程国栋

Job Title:

Huawei Technologies (Thailand) Co., Ltd.

Signed for and on behalf of Khon Kaen University by its duly authorised officer:

Mr/Ms

Chanchari Pal

Job Title:

Khon Kaen University